SYSTEM ANNOTATED REFERENCE CONTRACT 01: BRAND ENDORSEMENT, INFLUENCER & SYNC AGREEMENT

> SYSTEM METADATA & EVALUATION HEADER
> - Document ID: SYS-ANNOT-01
> - Contract Type: general_music / synchronization (Brand Partnership, Influencer Endorsement & Commercial Synchronization)
> - Jurisdiction: KE (Republic of Kenya)
> - Counterparties: Zuri Telecom & Mobile Money Kenya Limited ("Brand") and Amina Wanjiru p/k/a "Mina W." ("Artist")
> - Primary Reference Standards Cited:
> - KECOBO-SYNC-STD-01: Kenya Copyright Board (KECOBO) Advisory Copyright Contract Manual · Commercial Synchronization & Endorsement Licensing Standard (CC BY 4.0 / Statutory Guidance)
> - KE-CAP130-SEC32-33: Kenya Copyright Act, Cap. 130 (Sections 22, 30A, 32 & 33 · Economic Rights, Moral Rights, and Assignment vs. Licensing)
> - WIPO-MUSIC-STD-04: WIPO How to Make a Living from Music · Brand Sponsorship & Merchandising Clauses (CC BY 4.0)
> - Overall Risk Profile: Mixed / Hybrid Benchmark (Contains 4 matches_standard clauses, 1 better_for_you clause, 5 worse_for_you clauses including 1 cross-clause override, and 1 missing_from_contract protection. Designed to teach the system fine-grained clause discrimination within a single brand deal.)

PREAMBLE AND RECITALS

THIS BRAND ENDORSEMENT AND COMMERCIAL SYNCHRONIZATION AGREEMENT (the "Agreement") is entered into on the 1st day of December, 2026 (the "Effective Date") between ZURI TELECOM & MOBILE MONEY KENYA LIMITED, of Zuri Plaza, Mombasa Road, P.O. Box 10455-00100, Nairobi, Kenya (the "Brand"), and AMINA WANJIRU, professionally known as "Mina W.", of P.O. Box 88210-00200, Nairobi, Kenya (the "Artist").

WHEREAS, the Brand operates cellular voice, 5G data, and mobile wallet services in Kenya and is launching its "Zuri 5G BilaMipaka" campaign (the "Campaign"); and

WHEREAS, the Brand wishes to license the Artist's pre-existing hit track "Usiku wa Nairobi" (the "Licensed Track") and engage the Artist for campaign appearances on the terms set out below.

CLAUSE 1: CAMPAIGN DELIVERABLES AND CREATIVE APPROVAL

1.1 Deliverables and Scheduling. During the Term, the Artist shall provide two (2) commercial filming days in Nairobi, three (3) live stage appearances at Zuri 5G campus concerts, and six (6) social media posts on Instagram and TikTok. The Brand shall give the Artist at least 10 days (ten days) prior written notice of each scheduled date and shall pay all travel, security, styling, and production costs directly without deducting them from the Artist's fee.

> [EXPERT LEGAL & MBIU SYSTEM ANNOTATION · CLAUSE 1.1]
> - Clause ID: 1.1 | Topic: boilerplate (Scope of Services & Production Costs) | Affects: money
> - Drafted For: artist | Comparison Outcome: matches_standard | Mbiu Label: typical | Implication: none
> - Reference Standard Benchmark (KECOBO-SYNC-STD-01): "All studio, filming, styling, transport, and production expenses required by the Sponsor shall be paid directly by the Sponsor and shall not be recoupable from the Artist's fee, with appearance dates scheduled upon at least 10 days prior written notice."
> - Legal Expert Analysis:
> 1. Notice Period Protection: A 10-day advance written notice requirement protects the Artist from "on-call" ambush scheduling that forces cancellation of independent club or concert bookings.
> 2. Non-Recoupable Production Costs: Explicitly stating that the Brand pays travel, security, styling, and production costs without deducting them from the Artist's fee prevents one of the most common Kenyan brand-deal traps where agency production budgets are quietly subtracted from the headline endorsement fee.
> - Mbiu Verified Card Fields:
> - headline: "Brand pays production costs directly"
> - key_quote: "pay all travel, security, styling, and production costs directly without deducting them from the Artist's fee."
> - what_it_says: "You will do 2 shoot days, 3 shows, and 6 posts with at least 10 days notice. The Brand pays all travel and shoot costs without taking them from your fee."
> - what_it_means: "You could keep your full endorsement fee without losing money to studio, styling, or travel deductions, and the 10 days notice may help you plan around your own gigs."

- comparison_note: "Matches the KECOBO endorsement standard, which requires at least 10 days advance notice for appearances and requires the sponsor to cover all production costs directly."
- fairer_wording: "All studio, filming, styling, transport, and production expenses required by the Sponsor shall be paid directly by the Sponsor and shall not be recoupable from the Artist's fee, with appearance dates scheduled upon at least 10 days prior written notice."
- ask_them: []

CLAUSE 2: TERM AND TERRITORY

2.1 Six-Month Campaign Term. Subject to the archival and digital provisions of Clause 4.3, the term of this Agreement shall be 6 months (six months) commencing on the Effective Date and ending on 31st May, 2027 (the "Term"), within the territory of the Republic of Kenya (the "Territory").

[EXPERT LEGAL & MBIU SYSTEM ANNOTATION · CLAUSE 2.1]
- Clause ID: 2.1 | Topic: term_duration | Affects: time
- Drafted For: label | Comparison Outcome: worse_for_you | Mbiu Label: worth_asking_about | Implication: major
- Linked Clauses: ["4.3"] (override: "Subject to the archival and digital provisions of Clause 4.3")
- Reference Standard Benchmark (KECOBO-SYNC-STD-01): "The license and endorsement term shall be for a fixed duration of 6 months within the Republic of Kenya, upon the expiry of which all commercial broadcast and digital usage of the Artist's music and likeness shall cease."
- Legal Expert Analysis:
1. Cross-Clause Subordination Trap: On its face, Clause 2.1 looks like a clean 6-month Kenyan term. However, the opening carve-out ("Subject to the archival and digital provisions of Clause 4.3") subordinates the 6-month limit to Clause 4.3, which grants the Brand a perpetual worldwide license on digital and social platforms.
2. Why Mbiu Maps the Whole Contract First: If evaluated in isolation, Clause 2.1 would falsely appear to match the 6-month standard. Whole-contract mapping links Clause 2.1 and Clause 4.3 so the artist is warned upfront that the 6-month limit does not apply to online ads.
- Mbiu Verified Card Fields:
- headline: "6-month term is overridden by Clause 4.3"
- key_quote: "Subject to the archival and digital provisions of Clause 4.3, the term of this Agreement shall be 6 months"
- what_it_says: "This clause sets a 6 months term in Kenya. However, it links to Clause 4.3, which lets the Brand use your song and image online in perpetuity."
- what_it_means: "Even after the 6 months end on 31st May 2027, the Brand could keep running your song and image in online videos forever without paying you again because of Clause 4.3."
- comparison_note: "While the KECOBO standard sets a fixed 6 months term where all usage stops at expiry, Clause 2.1 links to Clause 4.3 to allow permanent online usage after the 6 months end."
- jargon_definitions: {"in perpetuity": "Forever, with no end date."}
- fairer_wording: "The license and endorsement term shall be for a fixed duration of 6 months within the Republic of Kenya, upon the expiry of which all commercial broadcast and digital usage of the Artist's music and likeness shall cease."
- ask_them: ["Can we remove the link to Clause 4.3 so all digital and broadcast uses end after 6 months?"]

CLAUSE 3: COMPENSATION AND PERFORMANCE BONUS

3.1 Fixed Endorsement and Sync Fee (Gross Basis). In consideration for the Deliverables and the synchronization of the Licensed Track, the Brand shall pay the Artist a fixed fee of Kenya Shillings Eight Hundred Thousand (KES 800,000) calculated on a gross receipts basis (prior only to statutory 5% resident Withholding Tax under the Income Tax Act, Cap. 470), payable 50% (KES 400,000) upon signing this Agreement and 50% (KES 400,000) within 14 days (fourteen days) after completion of the final Deliverable.

3.2 Campaign Viral Bonus. In addition to the fixed fee in Clause 3.1, if the Brand's official campaign commercial featuring the Licensed Track reaches five million (5,000,000) combined views across YouTube and TikTok during the Term, the Brand shall pay the Artist an additional bonus of Kenya Shillings Two Hundred Thousand (KES 200,000) on a gross basis within 30 days of the end of the Term. The Brand's internal marketing dashboard count shall be final and binding, and the Artist shall have no right to inspect or audit the Brand's platform analytics or ad-account records.

[EXPERT LEGAL & MBIU SYSTEM ANNOTATION · CLAUSE 3.1]
- Clause ID: 3.1 | Topic: royalties (Compensation & Payment Schedule) | Affects: money

- Drafted For: artist | Comparison Outcome: matches_standard | Mbiu Label: typical | Implication: none
- Reference Standard Benchmark (KECOBO-SYNC-STD-01): "The Sponsor shall pay the Artist the agreed Gross Endorsement Fee in two equal installments: 50% upon execution of the Agreement and 50% within 14 days of completion of deliverables, subject only to statutory withholding tax."
- Legal Expert Analysis:
1. Gross Basis & 50/50 Split: Payment is explicitly defined on a gross basis (KES 800,000) with zero agency commissions or hidden recoupments, and a 50% upfront payment protects the Artist's cash flow before stepping on set.
- Mbiu Verified Card Fields:
- headline: "Fixed KES 800,000 gross fee (50/50 split)"
- key_quote: "fixed fee of Kenya Shillings Eight Hundred Thousand (KES 800,000) calculated on a gross receipts basis"
- what_it_says: "You get a fixed KES 800,000 gross fee before 5% tax. You get KES 400,000 (50%) on signing and KES 400,000 (50%) within 14 days after finishing the work."
- what_it_means: "Receiving 50% upfront and 50% within 14 days on a gross basis means your KES 800,000 fee could not be reduced by agency or shoot costs."
- comparison_note: "Matches the KECOBO endorsement standard: 50% gross payment upon signing and 50% gross payment within 14 days of completing deliverables."
- money_inputs: {"rate": 800000.0, "basis": "gross", "deductions": ["5% resident Withholding Tax"], "quote": "fixed fee of Kenya Shillings Eight Hundred Thousand (KES 800,000) calculated on a gross receipts basis"}
- money_comparison: {"contract_basis": "gross", "reference_basis": "gross", "contract_rate": "KES 800,000 (50% upfront / 50% within 14 days)", "reference_rate": "50% gross upfront / 50% gross within 14 days"}
- fairer_wording: "The Sponsor shall pay the Artist the agreed Gross Endorsement Fee in two equal installments: 50% upon execution of the Agreement and 50% within 14 days of completion of deliverables, subject only to statutory withholding tax."
- ask_them: []

[EXPERT LEGAL & MBIU SYSTEM ANNOTATION · CLAUSE 3.2]
- Clause ID: 3.2 | Topic: accounting_audit | Affects: money
- Drafted For: label | Comparison Outcome: worse_for_you | Mbiu Label: worth_asking_about | Implication: minor
- Reference Standard Benchmark (WIPO-MUSIC-STD-04): "Where any compensation or bonus depends on sales, streams, or digital view metrics, the Artist shall have the right to receive verified platform statements and to inspect or audit the relevant analytics records upon reasonable written notice."
- Legal Expert Analysis:
1. Audit Waiver on Bonus Threshold: While the KES 200,000 bonus at 5,000,000 views is a positive incentive, the second sentence strips the Artist of any right to verify the view count ("the Artist shall have no right to inspect or audit the Brand's platform analytics").
- Mbiu Verified Card Fields:
- headline: "No audit right to verify KES 200,000 bonus"
- key_quote: "the Artist shall have no right to inspect or audit the Brand's platform analytics or ad-account records."
- what_it_says: "You earn a KES 200,000 gross bonus if campaign videos hit 5,000,000 views. However, you have no audit rights to check the Brand's view records."
- what_it_means: "Without audit rights over the analytics records, you may not be able to check if boosted or unlisted campaign videos actually reached 5,000,000 views."
- comparison_note: "Unlike the WIPO standard, which grants audit rights whenever pay depends on digital metrics, your contract blocks you from inspecting the view records for the KES 200,000 bonus."
- jargon_definitions: {"audit rights": "Your right to have an accountant or representative inspect the other party's records to check that numbers and payments are accurate."}
- fairer_wording: "Where any compensation or bonus depends on sales, streams, or digital view metrics, the Artist shall have the right to receive verified platform statements and to inspect or audit the relevant analytics records upon reasonable written notice."
- ask_them: ["Can the Brand share monthly view reports and allow audit rights to verify the 5,000,000 view count?"]

CLAUSE 4: COPYRIGHT OWNERSHIP AND SYNCHRONIZATION LICENSE

4.1 Artist Retains Song Ownership. Pursuant to the Copyright Act (Cap. 130, Laws of Kenya), the Artist retains one hundred percent (100%) ownership of the copyright in the musical composition and Master Sound Recording of the Licensed Track ("Usiku wa Nairobi"), and retains the unrestricted right to collect broadcast and public performance royalties through MCSK, KAMP, and PRISK.

4.2 Television and Radio Synchronization License. The Artist grants the Brand a non-exclusive synchronization and master use license to use the Licensed Track in television and radio commercials strictly within the Territory during the 6 months Term.

4.3 Perpetual Worldwide Digital & Adaptation Override. Notwithstanding Clause 2.1, Clause 4.1, or Clause 4.2, the Artist hereby grants to the Brand and its corporate affiliates an irrevocable, royalty-free, worldwide license in perpetuity to synchronize, remix, translate into local dialects, and stream the Licensed Track and the Artist's likeness across all internet, social media, YouTube, mobile app, and digital platforms, and waives all Moral Rights under Section 32 of the Copyright Act (Cap. 130) in respect of such digital adaptations.

> [EXPERT LEGAL & MBIU SYSTEM ANNOTATION · CLAUSE 4.1]
> - Clause ID: 4.1 | Topic: grant_of_rights | Affects: ownership
> - Drafted For: artist | Comparison Outcome: matches_standard | Mbiu Label: typical | Implication: none
> - Reference Standard Benchmark (KE-CAP130-SEC32-33): "In a commercial synchronization agreement, the Artist retains one hundred percent (100%) ownership of the copyright in the musical composition and master sound recording and retains the right to collect public performance and broadcast royalties via licensed CMOs."
> - Legal Expert Analysis:
> 1. Master & Publishing Retention: Explicitly preserves 100% ownership of both the composition and the master recording under the Kenya Copyright Act (Cap. 130) and preserves MCSK/KAMP/PRISK royalty collection.
> - Mbiu Verified Card Fields:
> - headline: "You keep 100% copyright in your song"
> - key_quote: "the Artist retains one hundred percent (100%) ownership of the copyright in the musical composition and Master Sound Recording"
> - what_it_says: "You keep 100% ownership of the song and master rights for 'Usiku wa Nairobi'. You also keep your right to collect MCSK, KAMP, and PRISK royalties."
> - what_it_means: "You do not give away ownership of your song to the Brand, and you could keep collecting royalties when your song plays on radio and TV."
> - comparison_note: "Matches the KECOBO and Copyright Act (Cap. 130) synchronization standard, where the artist licenses the song for the campaign while retaining 100% copyright ownership."
> - jargon_definitions: {"master rights": "Ownership of the actual audio recording of a song, separate from the underlying lyrics and melody."}
> - fairer_wording: "In a commercial synchronization agreement, the Artist retains one hundred percent (100%) ownership of the copyright in the musical composition and master sound recording and retains the right to collect public performance and broadcast royalties via licensed CMOs."
> - ask_them: []

> [EXPERT LEGAL & MBIU SYSTEM ANNOTATION · CLAUSE 4.3]
> - Clause ID: 4.3 | Topic: grant_of_rights (and moral_rights) | Affects: ownership
> - Drafted For: label | Comparison Outcome: worse_for_you | Mbiu Label: worth_asking_about | Implication: major
> - Linked Clauses: ["2.1", "4.1", "4.2"] (override: "Notwithstanding Clause 2.1, Clause 4.1, or Clause 4.2")
> - Reference Standard Benchmark (KECOBO-SYNC-STD-01 & KE-CAP130-SEC32-33): "Any synchronization license for digital and broadcast media shall be limited to the agreed 6 months campaign Term and Territory, and pursuant to Section 32 of the Copyright Act (Cap. 130), the Artist's moral rights to be credited as author and to object to derogatory alteration or remixing of the work shall remain intact."
> - Legal Expert Analysis:
> 1. "Notwithstanding" Override Trap: Clause 4.3 uses "Notwithstanding Clause 2.1, Clause 4.1, or Clause 4.2" to gut the 6-month Kenyan limitation in Clause 2.1 and 4.2, granting a worldwide license in perpetuity for all digital platforms and waiving Moral Rights under Section 32 of the Copyright Act (Cap. 130).
> - Mbiu Verified Card Fields:
> - headline: "Forever online license & moral rights waiver"
> - key_quote: "irrevocable, royalty-free, worldwide license in perpetuity to synchronize, remix, translate into local dialects, and stream the Licensed Track"
> - what_it_says: "This overrides the 6 months limit in Clause 2.1. It gives the Brand a worldwide license in perpetuity to use and remix your song online, and waives your moral rights."
> - what_it_means: "The Brand could keep using and remixing your song and image on YouTube, TikTok, and apps forever without paying you again, and you could not stop changes to your song."
> - comparison_note: "Standard KECOBO sync licenses limit online usage to the 6 months campaign Term and preserve Section 32 moral rights, whereas Clause 4.3 grants perpetual worldwide online rights."

- jargon_definitions: {"in perpetuity": "Forever, with no expiration date.", "moral rights": "Your rights under Section 32 of the Kenya Copyright Act to be credited as the creator and to stop others from changing your music in a way that harms your reputation."}
- fairer_wording: "Any synchronization license for digital and broadcast media shall be limited to the agreed 6 months campaign Term and Territory, and pursuant to Section 32 of the Copyright Act (Cap. 130), the Artist's moral rights to be credited as author and to object to derogatory alteration or remixing of the work shall remain intact."
- ask_them: ["Can we limit online usage in Clause 4.3 to the 6 months Term and require my consent for any remix?"]

CLAUSE 5: EXCLUSIVITY AND NON-COMPETE

5.1 Multi-Category Exclusivity and Post-Term Holdback. During the 6 months Term and for an additional 6 months after the expiration of the Term (12 months in total), the Artist shall not endorse, perform at events sponsored by, or license music to any business operating in telecommunications, internet service provision, mobile money, commercial banking, digital lending apps, insurance, or smartphone hardware anywhere in East Africa.

[EXPERT LEGAL & MBIU SYSTEM ANNOTATION · CLAUSE 5.1]
- Clause ID: 5.1 | Topic: exclusivity | Affects: freedom_to_work
- Drafted For: label | Comparison Outcome: worse_for_you | Mbiu Label: worth_asking_about | Implication: major
- Reference Standard Benchmark (WIPO-MUSIC-STD-04): "Exclusivity in a brand endorsement agreement shall be strictly confined to direct competitors within the specific product category being promoted and shall remain in effect only during the paid 6 months Term of the campaign."
- Legal Expert Analysis:
1. Unpaid Post-Term Exclusivity & Sector Overreach: The Brand pays for a 6-month campaign (Clause 2.1), yet Clause 5.1 locks the Artist out of 7 major corporate sectors·including concerts sponsored by banks, insurers, and phone brands·for 12 months (including 6 unpaid months after the deal ends).
- Mbiu Verified Card Fields:
- headline: "12 months ban across telco, banks & phones"
- key_quote: "During the 6 months Term and for an additional 6 months after the expiration of the Term (12 months in total)"
- what_it_says: "This lock lasts for the 6 months Term plus 6 months after it ends (12 months total). You cannot work with or play at shows for any phone, bank, or telco brand."
- what_it_means: "You could lose major concert bookings and brand deals across banking, phones, and insurance for a full 12 months, including 6 months when Zuri Telecom is no longer paying you."
- comparison_note: "Standard WIPO endorsement terms limit exclusivity strictly to direct product competitors during the paid 6 months Term, whereas your contract extends 12 months across 7 sectors."
- fairer_wording: "Exclusivity in a brand endorsement agreement shall be strictly confined to direct competitors within the specific product category being promoted and shall remain in effect only during the paid 6 months Term of the campaign."
- ask_them: ["Can exclusivity end after the 6 months Term and apply only to direct telecom brands, excluding live gigs?"]

CLAUSE 6: WARRANTIES, INDEMNITY AND LIABILITY CAP

6.1 Mutual Indemnity and Liability Cap. Each Party warrants that it has full authority to enter into this Agreement and that its materials do not infringe any third-party rights. Each Party shall indemnify the other against direct third-party claims arising from a proven breach of its warranties, provided that the Artist's total financial liability under this Agreement shall be capped at fifty percent (50%) of the fee actually received by the Artist.

[EXPERT LEGAL & MBIU SYSTEM ANNOTATION · CLAUSE 6.1]
- Clause ID: 6.1 | Topic: warranties_indemnities | Affects: money
- Drafted For: artist | Comparison Outcome: better_for_you | Mbiu Label: typical | Implication: none
- Reference Standard Benchmark (KECOBO-SYNC-STD-01): "Each Party shall indemnify the other against direct third-party losses arising from a proven breach of warranty, provided that the Artist's aggregate liability shall not exceed one hundred percent (100%) of the total fee actually received by the Artist under the Agreement."
- Mbiu Verified Card Fields:
- headline: "Your liability is capped at 50% of fees"
- key_quote: "the Artist's total financial liability under this Agreement shall be capped at fifty percent (50%) of the fee actually received"
- what_it_says: "Both sides protect each other against third-party claims via an indemnity. Your total financial liability is capped at 50% of the fee you have received."

- what_it_means: "If a claim happens, you could not be forced to pay back more than 50% of what you were paid, which may protect your personal savings."
- comparison_note: "More favourable than the KECOBO standard, which caps artist liability at 100% of fees received; your contract caps your liability at 50% of fees received."
- jargon_definitions: {"indemnity": "A promise by one party to cover the financial losses and legal costs of the other party if a specific problem or third-party claim happens."}
- fairer_wording: "Each Party shall indemnify the other against direct third-party losses arising from a proven breach of warranty, provided that the Artist's aggregate liability shall not exceed one hundred percent (100%) of the total fee actually received by the Artist under the Agreement."
- ask_them: []

CLAUSE 7: TERMINATION AND GOVERNING LAW

7.1 Unilateral Termination by Brand. The Brand may terminate this Agreement immediately upon written notice if the Artist is accused on social media of any conduct that, in the Brand's sole subjective opinion, harms the Brand's image, or upon 7 days (seven days) notice for convenience, in which case no unpaid installments of the KES 400,000 balance shall be payable.

7.2 Governing Law and Nairobi Mediation. This Agreement is governed by the laws of Kenya. Any dispute shall first be submitted to mediation in Nairobi under the Nairobi Centre for International Arbitration (NCIA) Mediation Rules before recourse to the courts of Kenya at Nairobi.

[EXPERT LEGAL & MBIU SYSTEM ANNOTATION · CLAUSE 7.1]
- Clause ID: 7.1 | Topic: termination | Affects: money
- Drafted For: label | Comparison Outcome: worse_for_you | Mbiu Label: worth_asking_about | Implication: major
- Reference Standard Benchmark (KECOBO-SYNC-STD-01): "Either Party may terminate this Agreement if the other Party commits a material breach (including non-payment) and fails to cure such breach within 14 days of written notice, or upon verified, objective conduct causing material public disrepute."
- Mbiu Verified Card Fields:
- headline: "Brand can cancel on 7 days notice & stop pay"
- key_quote: "upon 7 days (seven days) notice for convenience, in which case no unpaid installments of the KES 400,000 balance shall be payable."
- what_it_says: "The Brand can end the deal right away over online rumours in its sole opinion, or on 7 days notice for any reason. If it does, it will not pay the KES 400,000 balance."
- what_it_means: "You could finish the shoots and song license, and the Brand could still cancel on 7 days notice before paying your final KES 400,000 installment."
- comparison_note: "Standard KECOBO agreements require 14 days notice to cure a breach and objective proof of disrepute, whereas Clause 7.1 lets the Brand cancel on 7 days notice without paying."
- fairer_wording: "Either Party may terminate this Agreement if the other Party commits a material breach (including non-payment) and fails to cure such breach within 14 days of written notice, or upon verified, objective conduct causing material public disrepute."
- ask_them: ["Can we require 14 days notice to cure a breach and full payment if the Brand cancels after shoots begin?"]

[EXPERT LEGAL & MBIU SYSTEM ANNOTATION · CLAUSE 7.2]
- Clause ID: 7.2 | Topic: governing_law_jurisdiction | Affects: other
- Drafted For: neutral | Comparison Outcome: matches_standard | Mbiu Label: typical | Implication: none
- Reference Standard Benchmark (KECOBO-SYNC-STD-01): "This Agreement shall be governed by the laws of the Republic of Kenya, and any dispute shall first be referred to mediation in Nairobi prior to litigation in the Kenyan courts."
- Mbiu Verified Card Fields:
- headline: "Kenyan law and Nairobi mediation apply"
- key_quote: "governed by the laws of Kenya. Any dispute shall first be submitted to mediation in Nairobi"
- what_it_says: "This contract follows Kenyan law. Any dispute goes to mediation in Nairobi first before going to Kenyan courts."
- what_it_means: "If a dispute happens, you could resolve it locally in Nairobi through mediation rather than paying for a costly foreign court case."
- comparison_note: "Matches the KECOBO standard by applying Kenyan law and requiring local mediation in Nairobi before court proceedings."
- fairer_wording: "This Agreement shall be governed by the laws of the Republic of Kenya, and any dispute shall first be referred to mediation in Nairobi prior to litigation in the Kenyan courts."

- ask_them: []

WHOLE-CONTRACT MAP & REVERSE-CHECK ANNOTATIONS (SYSTEM CONTEXT)

1. Contract-Wide Issues (contract_map.issues)

- Issue 1 (override · Clauses 2.1 & 4.3):

- Explanation: Clause 2.1 sets a 6 months campaign Term in Kenya, but Clause 4.3 ("Notwithstanding Clause 2.1, Clause 4.1, or Clause 4.2...") overrides that limit and grants the Brand a worldwide license in perpetuity to use and remix the song and the Artist's likeness across all online and social media platforms.

- Quotes:

1. "Subject to the archival and digital provisions of Clause 4.3, the term of this Agreement shall be 6 months"

2. "Notwithstanding Clause 2.1, Clause 4.1, or Clause 4.2, the Artist hereby grants to the Brand and its corporate affiliates an irrevocable, royalty-free, worldwide license in perpetuity"

2. Missing Protections (missing_from_contract)

- termination_on_breach (No artist termination right for non-payment):

- Why flagged: Clause 7.1 grants termination rights solely to the Brand. The contract contains no clause allowing the Artist to terminate and revoke the synchronization license if the Brand fails to pay the KES 400,000 balance within 14 days.

- Suggested Question: "Can we specify that the artist may terminate upon 30 days written notice if payment default is not cured?"

SIGNATURES

SIGNED for ZURI TELECOM & MOBILE MONEY KENYA LTD: _____ (Director) | Date: 1st December, 2026

SIGNED by the ARTIST (AMINA WANJIRU p/k/a "Mina W."): _____ | Date: 1st December, 2026